IN THE MAGISTRATE'S COURT FOR THE DISTRICT OF **WYNBERG**
HELD AT **WYNBERG**

Case Number:

In the matter between:

SAUL ALLARDICE NCRDC4172	**APPLICANT**
AND	
JOHANNES ANDRIES LE ROUX **ID NUMBER: 8901215147084**	**1ST RESPONDENT**
FIRST NATIONAL BANK, A DIVISION OF FIRSTRAND BANK LIMITED	**2ND RESPONDENT**
WESBANK, A DIVISION OF FIRSTRAND BANK LIMITED	**3RD RESPONDENT**

CONFIRMATORY AFFIDAVIT

I, the undersigned

JOHANNES ANDRIES LE ROUX

do hereby declare under oath as follows:

1. I am the Consumer in this application for Debt Review to be brought by **SAUL ALLARDICE NCRDC4172** (hereinafter referred to as the Debt Counsellor) on my behalf in terms of Section 86 and am duly authorised to make this affidavit. The facts herein set out are within my own personal knowledge, unless clearly indicated to the contrary, in which case I verily believe them to be true and correct.

2. I am an adult **MALE**, with Identity Number **8901215147084** and am **MARRIED**, **ANTENUPTIAL AGREEMENT**, with 1 dependent/s. **EMPLOYED** and I permanently reside at **40 STRUBENS ROAD, MOWBRAY, CAPE TOWN, WESTERN CAPE** and as such I reside within the area of jurisdiction of this Honourable Court.

3. I confirm that i have seen and read the contents of the Applicant`s Founding Affidavit and confirm

4. The Respondents are the credit providers registered as such under the National Credit Act, Act 34 of 2005 (hereinafter referred to as the “Act”) with whom I am party to a credit agreement/s.

5. I confirm that I instructed the Debt Counsellor to approach above Honourable Court as a Debt Counsellor with a view to restructure my obligations to the various Credit Providers. I also confirm that i granted consent to the Debt Counsellor to negotiate interest rates with my Credit Providers.

APPLICATION FOR DEBT REVIEW

6. On **01 FEBRUARY 2026** I applied to the Applicant for debt review. I confirm that on said date the Debt Review process and fee structure was explained to me and that I understand and accept same.

7. I supplied the Debt Counsellor with all of the information required by Regulations 24(1)(a) and (b) of the Act. I confirm that the information given to the Debt Counsellor is to be used in support of an application for Debt Review and I confirm that such information is true and correct.

8. The reason I applied to the Debt Counsellor for Debt Review is that, in light of my monthly income and expenditure, it became apparent to me that I was over indebted and would require assistance, in terms of the Act, to deal with financial situation.

9. The reason for me becoming over-indebted is as follows:

My businesses failed during and after the COVID-19 pandemic due to financial pre

and lack of post-COVID venture capital. I lost my businesses and primary income

Consultancy income was slow and insufficient to meet obligations, so I relied on a

bank credit whose accumulated interest became unsustainable, resulting in over-i

10. Having regard to my financial means, prospects and obligations, I am unable to satisfy, in a timely manner, all of the Obligations under the various credit agreements, entered into with my Credit Providers.

11. I further understand from the Debt Counsellor that the Credit Providers were provided with the information as required in terms of the Act. Any further information not specifically mentioned or annexured hereto will be available at the hearing of this matter.

12. As a result of the assessment of my state of indebtedness the Debt Counsellor determined that I was over-indebted and issued a proposal to the Credit Providers.

13. I am aware that the Debt Counsellor`s offices are situated at 4th Floor, MutualPark, Jan Smuts Drive, Pinelands, Cape Town, 7405. As the Debt Counsellor`s place of business is not within my power to visit, I have conducted all my correspondence through means of telephone, e-mail and fax. I have been satisfied with the service received from the Debt Counsellor through these means, and in no way feel I have been prejudiced by not having physical access to the applicant with face-to-face meetings.

14. I waive the requirement that the Debt Counsellor is required to serve the application on me as provided for in Rules of the Court and waive compliance with the normal rules of court as far as they concern me, and I consent to the Debt Counsellor obtaining a court order in my absence.

15. I confirm that after having made my application for Debt Review, I have not incurred any further charges under a credit facility, nor have I entered into any further credit agreements with any Credit Provider. I furthermore do not intend, and undertaken, not to enter into any further credit agreements with any Credit Providers as is required by the Act.

16. I confirm that my Debt Counsellor have liaised with my Credit Providers and investigated, in terms of Section 126B of the Act 34 of 2005, and have found that none of the debt in respect of the credit agreements applicable to this application have prescribed.

17. I confirm that I have been making payments towards all my Credit Providers included in my Debt Review application, up and until the date I applied to be placed under Debt Review.

18. I believe that if my debts are re-arranged as set out in the proposal, I will be able to satisfy the re-arrangement obligations under the credit agreements with the priority of the eventual satisfaction of all my obligations under all the credit agreements.

19. The cost of this application will be borne by me, save in the instance that any of the Respondents oppose this application, in which case I seek an Order that the Respondent/s who oppose/s this application pays the costs arising from such opposition.

20. I confirm that the best of my knowledge, no notice in terms of Section 129 of the Act has been received by me.

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JOHANNES ANDRIES LE ROUX

SIGNED and SWORN/AFFIDAVIT to before me at Cape Town
on this 17th day of April 2026, the Deponent having acknowledged that he/she knows and understands the contents of this Affidavit, which is deposed to in accordance with the regulations governing the administration of an oath as more fully set out in Government Notice R 1258 of the 21st of July 1972, as amended by Government Notice 1648 dated the 19th of August 1977 and Government Notice 903 dated the 10th of July 1998.

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COMMISSIONER OF OATHS
Full Names:
Designation:
Business address:

First Resp. initial	Commissioner of Oaths initial